

26IWUD01011 26IWUD01011

County: los-angeles

Division: Civil Law and Motion

Department: 8

Hearing date: 2026-08-12

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The demurrer is overruled and the motion to strike is denied. The complaint states a cause of action for unlawful detainer based upon the failure to cure an allegedly material breach of the lease. (See Code Civ. Proc., § 1161, subd. (3).) Arguments about the Plaintiff's capacity to sue cannot be resolved via this demurrer and motion to strike, as they rely upon facts beyond the face of the complaint of which the court cannot take judicial notice. (County of Santa Clara v. Superior Court (2023) 14 Cal.5th 1034, 1041.) The Defendant's remaining arguments are conclusory and cite no support in the law or the record. The Defendant is ordered to file an answer within five days' notice of this ruling.